

Unfortunately, there is little of this approach in the Court's decision today. The Court casually, but candidly, abandons the functional approach to immunity that has run through all of our decisions. *Ante*, at 755-756. Indeed, the majority turns this rule on its head by declaring that because the functions of the President's office are so varied and diverse and some of them so profoundly important, the office is unique and must be clothed with officewide, absolute immunity. This is policy, not law, and in my view, very poor policy.

I

In declaring the President to be absolutely immune from suit for any deliberate and knowing violation of the Constitution or of a federal statute, the Court asserts that the immunity is "rooted in the constitutional tradition of the separation of powers and supported by our history."³ *Ante*, at 749. The decision thus has all the earmarks of a constitutional pronouncement—absolute immunity for the President's office is mandated by the Constitution. Although the Court appears to disclaim this, *ante*, at 748-749, n. 27, it is difficult to read the opinion coherently as standing for any narrower proposition: Attempts to subject the President to liability either by Congress through a statutory action or by the courts through a *Bivens* (*Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971)) proceeding would violate the separation of powers.⁴ Such a generalized absolute immunity cannot be sustained when examined in the traditional manner and in light of the traditional judicial sources.

The petitioner and the United States, as *amicus*,⁵ rely principally on two arguments to support the claim of absolute

³ Although the majority opinion initially claims that its conclusion is based substantially on "our history," historical analysis in fact plays virtually no part in the analysis that follows.

⁴ On this point, I am in agreement with the concurring opinion of THE CHIEF JUSTICE.

⁵ The Solicitor General relies entirely upon the brief filed by his office for petitioners in *Kissinger v. Halperin*, 452 U. S. 713 (1981).